

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 2162

By: Dobrinski

AS INTRODUCED

An Act relating to environment and natural resources; amending Section 1, Chapter 372, O.S.L. 2023 (27A O.S. Supp. 2024, Section 3-8-101), which relates to the Terry Peach North Canadian Watershed Restoration Act; renaming act to the Terry Peach Water Restoration Act; Section 2, Chapter 372, O.S.L. 2023 (27A O.S. Supp. 2024, Section 3-8-102), which relates to a pilot program to remove harmful woody species; amending definitions; making the pilot program a statewide program; amending Section 3, Chapter 372, O.S.L. 2023 (27A O.S. Supp. 2024, Section 3-8-103), which relates to the North Canadian Watershed Restoration Revolving Fund; renaming fund; changing purpose of fund; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY Section 1, Chapter 372, O.S.L. 2023 (27A O.S. Supp. 2024, Section 3-8-101), is amended to read as follows:

Section 3-8-101. This act shall be known and may be cited as the "Terry Peach ~~North Canadian Watershed~~ Water Restoration Act".

SECTION 2. AMENDATORY Section 2, Chapter 372, O.S.L. 2023 (27A O.S. Supp. 2024, Section 3-8-102), is amended to read as follows:

1 Section 3-8-102. A. As used in the Terry Peach ~~North Canadian~~
2 ~~Watershed~~ Water Restoration Act:

3 1. "Commission" means the Oklahoma Conservation Commission;

4 2. "Harmful woody species" means a tree or shrub species that
5 is rapidly encroaching into adjoining lands and is likely to cause
6 harm to the environment or economy. Harmful woody species include,
7 but are not limited to, *Juniperus virginiana* (Eastern Redcedar),
8 *Juniperus scopulorum* (Rocky Mountain juniper), *Juniperus monosperma*
9 (oneseed juniper) ~~and~~, *Tamarix ramosissima* (salt cedar), *Juniperus*
10 *pinchotii* (Redberry juniper), *Juniper ashei* (ashe juniper), and
11 *Prosopis glandulosa* (honey mesquite); and

12 3. "~~North Canadian~~ Watershed" means ~~the~~ an area of land in
13 Oklahoma that drains or sheds water into ~~the North Canadian River~~ a
14 waterway or water basin.

15 B. There is hereby created a ~~pilot~~ statewide program to remove
16 or eradicate harmful woody species in ~~the North Canadian Watershed~~
17 watersheds to be administered by the Oklahoma Conservation
18 Commission. To accomplish the goals listed in this section, the
19 Commission is authorized to use the funds available in the ~~North~~
20 ~~Canadian Watershed~~ Water Restoration Revolving Fund established in
21 ~~Section 3 of this act~~ Section 3-8-103 of this title. The purpose of
22 the program is to manage and eradicate, where possible, harmful
23 woody species that damage grazing lands, create significant wildfire
24

1 risk, reduce wildlife habitat and reduce water flow into ~~the North~~
2 ~~Canadian River~~ waterways and water basins.

3 C. In administering the ~~pilot~~ program, the Commission shall:

4 1. Cooperate with landowners, state agencies, and other
5 political subdivisions for removal of harmful woody species;

6 2. Measure the density of harmful woody species and estimate
7 water used by those species;

8 3. Create a study using a parallel watershed with no control of
9 harmful woody species;

10 4. Utilize available funds to cost-share with landowners for
11 expenses incurred in the eradication of harmful woody species by
12 prescribed burn, biological controls, mechanical removal, or
13 herbicide applications;

14 5. Develop grant programs with conservation districts, rural
15 fire departments, and prescribe burn associations for resources
16 needed for prescribed burns, mechanical removal, biological control,
17 or herbicide applications on harmful woody species;

18 6. Bring attention to the problems posed by harmful woody
19 species to create awareness, demonstrate value to all stakeholders,
20 and encourage landowners to participate in the program; and

21 7. Have at least two active project areas in the program, one
22 above the Canton Lake dam and one below.

23 D. The Commission is authorized to promulgate any rules and
24 procedures to effectuate the provisions of this section.

SECTION 3. AMENDATORY Section 3, Chapter 372, O.S.L.

2023 (27A O.S. Supp. 2024, Section 3-8-103), is amended to read as follows:

Section 3-8-103. There is hereby created in the State Treasury a revolving fund for the Oklahoma Conservation Commission to be designated the "~~North Canadian Watershed~~ Water Restoration Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all monies received by the Conservation Commission from appropriations, federal grants or funds, municipal contributions, private contributions, and any other sources, including interest earned from the income in the fund, that are designated for deposit to such fund or designated for duties associated with harmful woody species removal from ~~the North Canadian Watershed~~ watersheds throughout the state. All monies accruing to the credit of said fund are hereby appropriated and may be budgeted and expended by the Conservation Commission to perform the duties imposed on the Commission by law. Expenditures from said fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the Director of the Office of Management and Enterprise Services for approval and payment.

SECTION 4. This act shall become effective November 1, 2025.

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